

Executive Engineer, Electricity Distribution Division v. District Consumer Forum

Allahabad High Court · Division Bench · 13 December 2018 · Writ-C No. 39863 of 2018 · **Forum orders staying s.126 recovery stayed; notice issued**

HEADNOTE

On a distribution licensee's writ against District Consumer Forum orders staying recovery of a theft assessment under section 126 of the Electricity Act, 2003, the Allahabad High Court, applying *UPPCL v. Anis Ahmad*, held prima facie that a complaint against section 126 assessment (and offences under sections 135 to 140) is not maintainable before the Consumer Forum, issued notice, and stayed the Forum's orders.

FACTUAL SUMMARY

The Executive Engineer, Electricity Distribution Division, Deoria challenged two orders of the District Consumer Forum, Deoria (Complaint Case No. 341 of 2018, dated 1 and 4 August 2018) that had stayed recovery against the second respondent on an allegation of theft under section 126 of the Electricity Act, 2003. The supply was a commercial connection. The licensee argued that the Forum lacked jurisdiction and that the Electricity Supply Code already provided the remedy, relying on the Supreme Court decision in *UPPCL v. Anis Ahmad*.

HOLDING-UNITS

INTERPLAY · EA2003::126

consumer-forum-jurisdiction

HOLDING

Prima facie, a District Consumer Forum has no jurisdiction to entertain a complaint against assessment or recovery for theft/unauthorised use under section 126 of the Electricity Act, 2003, or against offences under sections 135 to 140 (triable only by a Special Court under section 153), and cannot stay such recovery; applying *UPPCL v. Anis Ahmad*, the High Court stayed the Forum's orders dated 1 and 4 August 2018. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL MAINTAINABILITY OF THE CONSUMER FORUM COMPLAINT AND DISPOSAL OF THE WRIT

Only a prima facie view was taken; notice issued and the Forum orders stayed till the next date of listing. ¶ 5-8

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Uttar Pradesh Power Corporation Ltd. v. Anis Ahmad</i> 2013 (8) SCC 419			4	Referred